Ada R. Cordero-Sacks, Esq. (SBN: 240274)
Tracey Merrell, Esq. (SBN 266704)
LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, California 91304
Email: eservice@loacs.com
Telephone: (818) 343-0100; Facsimile: (818) 343-0070
Attorney for Plaintiff, **FOX NORMANDIE APARTMENTS, LP**

Electronically FILED by Superior Court of California, County of Los Angeles 4/14/2026 4:37 PM David W. Slayton, Executive Officer/Clerk of Court, By C. Jimenez, Deputy Clerk

SUPERIOR COURT FOR THE STATE OF CALIFORNIA
COUNTY OF LOS ANGELES - CENTRAL DISTRICT (STANLEY MOSK)

FOX NORMANDIE APARTMENTS, LP Plaintiff, vs. **DERRICK L. BEVERLY**, an individual; and DOES 1 to 5, Defendant	Case Number: **22 STUD 06657** **DECLARATION OF TRACEY MERRELL IN SUPPORT OF OPPOSITION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT** **Hearing Date:** April 22, 2026 **Time:** 8:30 AM **Dept:** 91

AFFIDAVIT/DECLARATION OF TRACEY MERRELL

I, Tracey Merrell, declare as follows:

1. I am over the age of 18 years old. The following facts are within my own personal first-hand knowledge and if called upon to testify in this action as to these matters I could and would competently testify thereto.

2. I am not a party to this action.

3. I am a Senior Attorney with the Law Office of Ada Cordero-Sacks who represents the Plaintiff in this Matter.

4. Upon review of the court record and our office files, Defendant, Derrick L. Beverly aka Derrick Lamont Beverly was personally served with the lawsuit on October 27, 2022, by registered process server, Carlos Abrego registration #6456 as evidenced on his proof of service filed with the court on November 17, 2022.

5. Upon review of the court record and our office files, all unknown occupants were served with the lawsuit by substitute service on October 27, 2022, by registered process server, Carlos

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Abrego registration #6456 as evidenced on his proof of service filed with the Court on November 17, 2022, and the amended proof of service filed with the Court on November 21, 2022.

6. True and correct copies of the proofs of service that were filed with the court attached as Exhibit 1 and incorporated by reference.

7. Defendant has a history of intentional misrepresentation and deception through affirmative actions because on more than one occasion, he has provided notice to our office with hidden text as to the date and time of his motions.

8. On October 15, 2025, Defendant sent an email purportedly providing notice of his ex parte application, however there was no visible date or time on the notice. Only after highlighting a large blank space, was plaintiff able to reveal the actual notice portion of the filing and only after copying the highlighting and putting it in a word document with black font, which stated:

> *Title: Ex Parte Application for Reconsideration of Order Denying Ex Parte Application for Stay and Vacatur*
> *Hearing Date: October 16, 2025 (or next available Ex Parte calendar date)*
> *Time: 1:30 PM*
> *Location: Department 91, Stanley Mosk Courthouse*
> *Judge: Hon. Mike H. Madokoro*

9. I took a snapshot of the October 15, 2025 email sent at 6:19 p.m. as it appeared in the office email. A true and correct copy of that snapshot of the email that showed blank notice is attached as Exhibit 2 and incorporated by reference.

10. I took a second snapshot of the October 15, 2025, email sent at 6:19 p.m. after highlighting the hidden text. A true and correct copy of that snapshot of the email that showed blank notice is attached as Exhibit 3 and incorporated by reference.

11. Defendant sent a second email on October 15, 2026, at 6:34 p.m. that also contained hidden text. When I copied and pasted it into a word document it revealed the following text:

> *Counsel,*

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

*Following my earlier CRC **3.1203/3.1204** notice email regarding tomorrow's **ex parte** in Dept. 91, I write to **supplement** service with **Exhibit A (Minute Order dated October 15, 2025)**, which I inadvertently omitted from the prior transmission.*

Hearing Details (unchanged):

- ***Matter:*** *Ex Parte Application for **Reconsideration**; **Temporary Stay of Enforcement** pending §473(d) Motion to Vacate*
- ***Case:*** *Fox Normandie Apartments, LP v. Derrick L. Beverly, **22STUD06657***
- ***Judge/Dept.:*** *Hon. **Mike H. Madokoro**, **Dept. 91***
- ***Date/Time: [Oct 16, 2025], 1:30 p.m.***
- ***Location: Stanley Mosk Courthouse**, 111 N. Hill St., Los Angeles, CA 90012 (LACourtConnect if permitted)*

Attachments (Supplemental):

1.

Exhibit A – Minute Order (10/15/2025) – now attached

(All previously served filings remain unchanged: Application, Declarations, MPA, POS-050, POS-030.)

Please confirm receipt. If you contend this supplementation impacts your appearance or position, advise today and propose any reasonable accommodation consistent with department protocol and the urgency of the requested stay.

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

Respectfully,

12. I took a snapshot of the October 15, 2025, email sent at 6:34 p.m. as it appeared in the office email. A true and correct copy of that snapshot of the email that showed blank notice is attached as Exhibit 4 and incorporated by reference.

13. I took a second snapshot of the October 15, 2025, email sent at 6:34 p.m. after highlighting the hidden text. A true and correct copy of that snapshot of the email that showed blank notice is attached as Exhibit 5 and incorporated by reference.

14. I have previously informed the court through my opposition papers that Defendant was being deceptive in his moving papers by addressing the white text in Defendant's communications. Regardless, the Defendant continues to take these affirmative actions.

15. I took a snapshot of the March 24, 2026, email sent at 9:44 p.m. as it appeared in the office email. A true and correct copy of that snapshot of the email that showed blank notice is attached as Exhibit 6 and incorporated by reference.

16. Defendant repeated this tactic on his notice of his motion to set aside his sanctions.

17. Defendant's credibility is called into question when he has taken affirmative actions to misrepresent himself to the court about providing legal notice.

I declare under penalty of perjury under the laws of the State of California that the foregoing is true and correct. Executed this 14th day of April 2026, at Los Angeles, California.

TRACEY MERRELL

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

EXHIBIT 1

Electronically FILED by Superior Court of California, County of Los Angeles on 11/17/2022 12:09 PM Sherri R. Carter, Executive Officer/Clerk of Court, by D. Diaz,Deputy Clerk

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address)*	FOR COURT USE ONLY
LAW OFFICES OF ADA R. CORDERO-SACKS ADA R CORDERO-SACKS, ESQ. (SBN 240274) 8399 TOPANGA CANYON BLVD UNIT 304 WEST HILLS, CA 91304 TELEPHONE NO: 818-343-0100 FAX NO *(Optional)*: (818) 343-0070 E-MAIL ADDRESS *(Optional)*: ATTORNEY FOR *(Name)*: PLAINTIFF	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 111 N HILL ST MAILING ADDRESS: CITY AND ZIP CODE: LOS ANGELES BRANCH NAME: Stanley Mosk Courthouse	
PLAINTIFF / PETITIONER: FOX NORMANDIE APARTMENTS, LP DEFENDANT / RESPONDENT: DERRICK L. BEVERLY, AN INDIVIDUAL	CASE NUMBER: 22STUD06657
PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.: 7872262

(Separate proof of service is required for each party served.)

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of:
   a. ☐ summons
   b. ☐ complaint
   c. ☐ Alternative Dispute Resolution (ADR) package
   d. ☐ Civil Case Cover Sheet *(served in complex cases only)*
   e. ☐ cross-complaint
   f. ☒ other *(specify documents)*: PLAINTIFF'S MANDATORY COVER SHEET AND SUPPLEMENTAL ALLEGATIONS-UNLAWFUL DETAINER; COMPLAINT-UNLAWFUL DETAINER; SUMMONS; CIVIL CASE COVER SHEET; CIVIL CASE COVER SHEET ADDENDUM; PREJUDGMENT CLAIM OF RIGHT TO POSSESSION; COMPLAINT; PROPERTY OWNER/LANDLORD ONLY HEARING NOTICE; NOTICE OF CASE ASSIGNMENT-LIMITED CIVIL CASE; FIFTH AMENDED STANDING ORDER; UNLAWFUL DETAINER DISTRICT HUBS; STANDING ORDER; NOTICE OF ONLINE DISPUTE RESOLUTION,STANDING ORDER RE ONLINE DISPUTE RESOLUTION
3. a. Party served *(specify name of party as shown on documents served)*:
   DERRICK L. BEVERLY, AN INDIVIDUAL
   b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a)*:
4. Address where the party was served:
   849 S NORMANDIE AVENUE UNIT#101, LOS ANGELES, CA 90005-2145(LOS ANGELES COUNTY)
5. I served the party *(check proper box)*
   a. ☒ **by personal service**. I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on *(date)*: Thu, Oct 27 2022 (2) at *(time)*: 05:02 PM
   b. ☐ **by substituted service**. On *(date)*: at *(time)*: I left the documents listed in item 2 with or in the presence of *(name and title or relationship to person indicated in item 3)*:
      (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
      (2) ☐ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
      (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
      (4) ☐ I thereafter mailed (by first-class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc., § 415.20). I mailed the documents on *(date)*: from *(city)*: or ☐ a declaration of mailing is attached.
      (5) ☐ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

PLAINTIFF / PETITIONER: FOX NORMANDIE APARTMENTS, LP DEFENDANT / RESPONDENT: DERRICK L. BEVERLY, AN INDIVIDUAL	CASE NUMBER: 22STUD06657

5. c. ☐ **by mail and acknowledgment of receipt of service**. I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
   (1) on *(date)*: (2) from *(city)*:
   (3) ☐ with two copies of the *Notice and Acknowledgment of Receipt* and a postage-paid return envelope addressed to me. *(Attach completed Notice and Acknowledgement of Receipt.)* (Code Civ. Proc., § 415.30.)
   (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40.)
   d. ☐ **by other means** *(specify means of service and authorizing code section)*:

   ☐ Additional page describing service is attached.
6. The "Notice to the Person Served" (on the summons) was completed as follows:
   a. ☒ as an individual defendant.
   b. ☐ as the person sued under the fictitious name of *(specify)*:
   c. ☐ as occupant.
   d. ☐ On behalf of *(specify)*:
   under the following Code of Civil Procedure section:
   - ☐ 416.10 (corporation)
   - ☐ 416.20 (defunct corporation)
   - ☐ 416.30 (joint stock company/association)
   - ☐ 416.40 (association or partnership)
   - ☐ 416.50 (public entity)
   - ☐ other:
   - ☐ 415.95 (business organization, form unknown)
   - ☐ 416.60 (minor)
   - ☐ 416.70 (ward or conservatee)
   - ☐ 416.90 (authorized person)
   - ☐ 415.46 (occupant)
7. **Person who served papers**
   a. Name: CA PROCESS SERVICE CARLOS ABREGO
   b. Address: 14800 Rinaldi St. #24, Mission Hills, CA 91345
   c. Telephone number: 818-424-9934
   d. **The fee** for service was: $50
   e. I am:
      (1) ☐ not a registered California process server.
      (2) ☐ exempt from registration under Business and Professions Code section 22350(b).
      (3) ☒ a registered California process server:
         (i) ☒ owner ☐ employee ☒ independent contractor
         (ii) Registration No: Los Angeles County Registration #6456
         (iii) County: LOS ANGELES
8. ☒ **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
   or
9. ☐ **I am a California sheriff or marshal and** I certify that the foregoing is true and correct.

Date: 10/27/2022

CA PROCESS SERVICE CARLOS ABREGO

(NAME OF PERSON WHO SERVED PAPERS / SHERIFF OR MARSHAL)



(SIGNATURE)

Electronically FILED by Superior Court of California, County of Los Angeles on 11/17/2022 12:09 PM Sherri R. Carter, Executive Officer/Clerk of Court, by D. Diaz,Deputy Clerk

POS-010

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address)*	FOR COURT USE ONLY
LAW OFFICES OF ADA R. CORDERO-SACKS ADA R CORDERO-SACKS, ESQ. (SBN 240274) 8399 TOPANGA CANYON BLVD UNIT 304 WEST HILLS, CA 91304 TELEPHONE NO: 818-343-0100 FAX NO *(Optional)*: (818) 343-0070 E-MAIL ADDRESS *(Optional)*: ATTORNEY FOR *(Name)*: PLAINTIFF	
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 111 N HILL ST MAILING ADDRESS: CITY AND ZIP CODE: LOS ANGELES BRANCH NAME: Stanley Mosk Courthouse	
PLAINTIFF / PETITIONER: FOX NORMANDIE APARTMENTS, LP DEFENDANT / RESPONDENT: DERRICK L. BEVERLY, AN INDIVIDUAL	CASE NUMBER: 22STUD06657
PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.: 7872262

(Separate proof of service is required for each party served.)

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of:
   a. ☐ summons
   b. ☐ complaint
   c. ☐ Alternative Dispute Resolution (ADR) package
   d. ☐ Civil Case Cover Sheet *(served in complex cases only)*
   e. ☐ cross-complaint
   f. ☒ other *(specify documents)*: PLAINTIFF'S MANDATORY COVER SHEET AND SUPPLEMENTAL ALLEGATIONS-UNLAWFUL DETAINER; COMPLAINT-UNLAWFUL DETAINER; SUMMONS; CIVIL CASE COVER SHEET; CIVIL CASE COVER SHEET ADDENDUM; PREJUDGMENT CLAIM OF RIGHT TO POSSESSION; COMPLAINT; PROPERTY OWNER/LANDLORD ONLY HEARING NOTICE; NOTICE OF CASE ASSIGNMENT-LIMITED CIVIL CASE; FIFTH AMENDED STANDING ORDER; UNLAWFUL DETAINER DISTRICT HUBS; STANDING ORDER; NOTICE OF ONLINE DISPUTE RESOLUTION,STANDING ORDER RE ONLINE DISPUTE RESOLUTION
3. a. Party served *(specify name of party as shown on documents served)*:
   ALL OTHER OCCUPANTS IN POSSESSION
   b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a)*:
4. Address where the party was served:
   849 S NORMANDIE AVENUE UNIT#101, LOS ANGELES, CA 90005-2145(LOS ANGELES COUNTY)
5. I served the party *(check proper box)*
   a. ☐ **by personal service**. I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on *(date)*: Thu, Oct 27 2022 (2) at *(time)*: 05:02 PM
   b. ☒ **by substituted service**. On *(date)*: Thu, Oct 27 2022 at *(time)*: 05:02 PM I left the documents listed in item 2 with or in the presence of *(name and title or relationship to person indicated in item 3)*:
   DERRICK L. BEVERLY, AN INDIVIDUAL/BLK/M/5'9/195/BLK HAIR/30 YEARS
      (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
      (2) ☒ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
      (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
      (4) ☒ I thereafter mailed (by first-class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc., § 415.20). I mailed the documents on *(date)*: Thu, Oct 27 2022 from *(city)*: MISSION HILLS CA or ☐ a declaration of mailing is attached.
      (5) ☐ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

PLAINTIFF / PETITIONER: FOX NORMANDIE APARTMENTS, LP DEFENDANT / RESPONDENT: DERRICK L. BEVERLY, AN INDIVIDUAL	CASE NUMBER: 22STUD06657

5. c. ☐ **by mail and acknowledgment of receipt of service**. I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
   (1) on *(date)*: (2) from *(city)*:
   (3) ☐ with two copies of the *Notice and Acknowledgment of Receipt* and a postage-paid return envelope addressed to me. *(Attach completed Notice and Acknowledgement of Receipt.)* (Code Civ. Proc., § 415.30.)
   (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40.)

   d. ☒ **by other means** *(specify means of service and authorizing code section)*:

   1) Successful Attempt: Oct 25, 2022, 1:00 pm PDT at 849 S NORMANDIE AVENUE UNIT#101, LOS ANGELES, CA 90005-2145(LOS ANGELES COUNTY) received by DERRICK L. BEVERLY, AN INDIVIDUAL.

   SERVICE WAS MADE IN ACCORDANCE WITH 415.46 CCP INCLUDING POSTING OF DOCUMENTS IN ITEM 2. POSTING ON DOOR OCCURRED ON ___10/25/22 AT 1:00 PM PDT, ADDITIONAL MAILING OCCURRED ON ___10/25/22__ FROM MISSION HILLS, CA.

   ☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:
   a. ☐ as an individual defendant.
   b. ☐ as the person sued under the fictitious name of *(specify)*:
   c. ☐ as occupant.
   d. ☒ On behalf of *(specify)*:
   under the following Code of Civil Procedure section:

☐ 416.10 (corporation)	☐ 415.95 (business organization, form unknown)
☐ 416.20 (defunct corporation)	☐ 416.60 (minor)
☐ 416.30 (joint stock company/association)	☐ 416.70 (ward or conservatee)
☐ 416.40 (association or partnership)	☐ 416.90 (authorized person)
☐ 416.50 (public entity)	☒ 415.46 (occupant)
☐ other:	

7. **Person who served papers**
   a. Name: CA PROCESS SERVICE CARLOS ABREGO
   b. Address: 14800 Rinaldi St. #24, Mission Hills, CA 91345
   c. Telephone number: 818-424-9934
   d. **The fee** for service was: $0
   e. I am:
      (1) ☐ not a registered California process server.
      (2) ☐ exempt from registration under Business and Professions Code section 22350(b).
      (3) ☒ a registered California process server:
         (i) ☒ owner ☐ employee ☒ independent contractor
         (ii) Registration No: Los Angeles County Registration #6456
         (iii) County: LOS ANGELES
8. ☒ **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
   or
9. ☐ **I am a California sheriff or marshal and** I certify that the foregoing is true and correct.

Date: 10/27/2022

CA PROCESS SERVICE CARLOS ABREGO

(NAME OF PERSON WHO SERVED PAPERS / SHERIFF OR MARSHAL)



(SIGNATURE)

Electronically FILED by Superior Court of California, County of Los Angeles on 11/21/2022 05:39 PM Sherri R. Carter, Executive Officer/Clerk of Court, by V. Bailey,Deputy Clerk

ATTORNEY OR PARTY WITHOUT ATTORNEY *(Name, State Bar number, and address)* LAW OFFICES OF ADA R. CORDERO-SACKS ADA R CORDERO-SACKS, ESQ. (SBN 240274) 8399 TOPANGA CANYON BLVD UNIT 304 WEST HILLS, CA 91304 TELEPHONE NO: 818-343-0100 FAX NO *(Optional)*: (818) 343-0070 E-MAIL ADDRESS *(Optional)*: ATTORNEY FOR *(Name)*: PLAINTIFF	FOR COURT USE ONLY
SUPERIOR COURT OF CALIFORNIA, COUNTY OF LOS ANGELES STREET ADDRESS: 111 N HILL ST MAILING ADDRESS: CITY AND ZIP CODE: LOS ANGELES BRANCH NAME: Stanley Mosk Courthouse	
PLAINTIFF / PETITIONER: FOX NORMANDIE APARTMENTS, LP DEFENDANT / RESPONDENT: DERRICK L. BEVERLY, AN INDIVIDUAL	CASE NUMBER: 22STUD06657
AMENDED PROOF OF SERVICE OF SUMMONS	Ref. No. or File No.: 7872262

(Separate proof of service is required for each party served.)

1. At the time of service I was at least 18 years of age and not a party to this action.
2. I served copies of:
   a. ☐ summons
   b. ☐ complaint
   c. ☐ Alternative Dispute Resolution (ADR) package
   d. ☐ Civil Case Cover Sheet *(served in complex cases only)*
   e. ☐ cross-complaint
   f. ☒ other *(specify documents)*: PLAINTIFF'S MANDATORY COVER SHEET AND SUPPLEMENTAL ALLEGATIONS-UNLAWFUL DETAINER; COMPLAINT-UNLAWFUL DETAINER; SUMMONS; CIVIL CASE COVER SHEET; CIVIL CASE COVER SHEET ADDENDUM; PREJUDGMENT CLAIM OF RIGHT TO POSSESSION; COMPLAINT; PROPERTY OWNER/LANDLORD ONLY HEARING NOTICE; NOTICE OF CASE ASSIGNMENT-LIMITED CIVIL CASE; FIFTH AMENDED STANDING ORDER; UNLAWFUL DETAINER DISTRICT HUBS; STANDING ORDER; NOTICE OF ONLINE DISPUTE RESOLUTION,STANDING ORDER RE ONLINE DISPUTE RESOLUTION
3. a. Party served *(specify name of party as shown on documents served)*:
   ALL OTHER OCCUPANTS IN POSSESSION
   b. ☐ Person (other than the party in item 3a) served on behalf of an entity or as an authorized agent (and not a person under item 5b on whom substituted service was made) *(specify name and relationship to the party named in item 3a)*:
4. Address where the party was served:
   849 S NORMANDIE AVENUE UNIT#101, LOS ANGELES, CA 90005-2145(LOS ANGELES COUNTY)
5. I served the party *(check proper box)*
   a. ☐ **by personal service**. I personally delivered the documents listed in item 2 to the party or person authorized to receive service of process for the party (1) on *(date)*: Thu, Oct 27 2022 (2) at *(time)*: 05:02 PM
   b. ☒ **by substituted service**. On *(date)*: Thu, Oct 27 2022 at *(time)*: 05:02 PM I left the documents listed in item 2 with or in the presence of *(name and title or relationship to person indicated in item 3)*:
   DERRICK L. BEVERLY, AN INDIVIDUAL/BLK/M/5'9/195/BLK HAIR/30 YEARS
      (1) ☐ **(business)** a person at least 18 years of age apparently in charge at the office or usual place of business of the person to be served. I informed him or her of the general nature of the papers.
      (2) ☒ **(home)** a competent member of the household (at least 18 years of age) at the dwelling house or usual place of abode of the party. I informed him or her of the general nature of the papers.
      (3) ☐ **(physical address unknown)** a person at least 18 years of age apparently in charge at the usual mailing address of the person to be served, other than a United States Postal Service post office box. I informed him or her of the general nature of the papers.
      (4) ☒ I thereafter mailed (by first-class, postage prepaid) copies of the documents to the person to be served at the place where the copies were left (Code Civ. Proc., § 415.20). I mailed the documents on *(date)*: Thu, Oct 27 2022 from *(city)*: MISSION HILLS CA or ☐ a declaration of mailing is attached.
      (5) ☐ I attach a **declaration of diligence** stating actions taken first to attempt personal service.

PLAINTIFF / PETITIONER: FOX NORMANDIE APARTMENTS, LP DEFENDANT / RESPONDENT: DERRICK L. BEVERLY, AN INDIVIDUAL	CASE NUMBER: 22STUD06657

5. c. ☐ **by mail and acknowledgment of receipt of service**. I mailed the documents listed in item 2 to the party, to the address shown in item 4, by first-class mail, postage prepaid,
   (1) on *(date)*: (2) from *(city)*:
   (3) ☐ with two copies of the *Notice and Acknowledgment of Receipt* and a postage-paid return envelope addressed to me. *(Attach completed Notice and Acknowledgement of Receipt.)* (Code Civ. Proc., § 415.30.)
   (4) ☐ to an address outside California with return receipt requested. (Code Civ. Proc., § 415.40.)

   d. ☒ **by other means** *(specify means of service and authorizing code section)*:
   1) Successful Attempt: Oct 27, 2022, 5:02 pm PDT at 849 S NORMANDIE AVENUE UNIT#101, LOS ANGELES, CA 90005-2145(LOS ANGELES COUNTY) received by DERRICK L. BEVERLY, AN INDIVIDUAL.

   SERVICE WAS MADE IN ACCORDANCE WITH 415.46 CCP INCLUDING POSTING OF DOCUMENTS IN ITEM 2. POSTING ON DOOR OCCURRED ON ___10/27/22 AT 5:02 PM PDT, ADDITIONAL MAILING OCCURRED ON ___10/27/22__ FROM MISSION HILLS, CA>

   ☐ Additional page describing service is attached.

6. The "Notice to the Person Served" (on the summons) was completed as follows:
   a. ☐ as an individual defendant.
   b. ☐ as the person sued under the fictitious name of *(specify)*:
   c. ☐ as occupant.
   d. ☒ On behalf of *(specify)*:
   under the following Code of Civil Procedure section:

☐ 416.10 (corporation)	☐ 415.95 (business organization, form unknown)
☐ 416.20 (defunct corporation)	☐ 416.60 (minor)
☐ 416.30 (joint stock company/association)	☐ 416.70 (ward or conservatee)
☐ 416.40 (association or partnership)	☐ 416.90 (authorized person)
☐ 416.50 (public entity)	☒ 415.46 (occupant)
☐ other:	

7. **Person who served papers**
   a. Name: CA PROCESS SERVICE CARLOS ABREGO
   b. Address: 14800 Rinaldi St. #24, Mission Hills, CA 91345
   c. Telephone number: 818-424-9934
   d. **The fee** for service was: $0
   e. I am:
      (1) ☐ not a registered California process server.
      (2) ☐ exempt from registration under Business and Professions Code section 22350(b).
      (3) ☒ a registered California process server:
         (i) ☒ owner ☐ employee ☒ independent contractor
         (ii) Registration No: Los Angeles County Registration #6456
         (iii) County: LOS ANGELES

8. ☒ **I declare** under penalty of perjury under the laws of the State of California that the foregoing is true and correct.
   or
9. ☐ **I am a California sheriff or marshal and** I certify that the foregoing is true and correct.

Date: 10/27/2022

CA PROCESS SERVICE CARLOS ABREGO

(NAME OF PERSON WHO SERVED PAPERS / SHERIFF OR MARSHAL)



(SIGNATURE)

EXHIBIT 2

From: Derrick LaMont Beverly <dernierrilamont@yahoo.com>
Sent: Wednesday, October 15, 2025 6:19:11 PM
To: Christopher Godinez <cgodinez@loacs.com>
Cc: Ada Cordero-Sacks <ada@loacs.com>
Subject: Subject: Notice of Ex Parte Application for Reconsideration and Stay – Fox Normandie Apartments, LP v. Beverly (Case No. 22STUD06657)

Dear Counsel,

Pursuant to California Rules of Court, Rules 3.1203 and 3.1204, please accept this formal notice that Defendant Derrick LaMont Beverly will appear ex parte before the Honorable Judge Mike H. Madokoro, Department 91, of the Stanley Mosk Courthouse, located at 111 North Hill Street, Los Angeles, California 90012, to present the following emergency application:

Nature of Relief Sought

Defendant seeks reconsideration of the Court's October 15, 2025 Minute Order, which denied the prior Ex Parte Application solely on procedural grounds. This reconsideration request is properly brought under CCP §1008, Rule 3.1204, and CCP §473(d), on the basis that:

1. The previous denial was not on the merits but for lack of typed format, missing declaration, and absence of proof of notice.
2. The current filing corrects those deficiencies, including:
    - A typed, line-numbered pleading compliant with Rule 2.109;
    - A Declaration of Notice (CRC 3.1203/3.1204 compliant);

EXHIBIT 3

From: Derrick LaMont Beverly <derniercrilamont@yahoo.com>
Sent: Wednesday, October 15, 2025 6:19:11 PM
To: Christopher Godinez <cgodinez@loacs.com>
Cc: Ada Cordero-Sacks <ada@loacs.com>
Subject: Subject: Notice of Ex Parte Application for Reconsideration and Stay – Fox Normandie Apartments, LP v. Beverly (Case No. 22STUD06657)

Dear Counsel,

Pursuant to California Rules of Court, Rules 3.1203 and 3.1204, please accept this formal notice that Defendant Derrick LaMont Beverly will appear ex parte before the Honorable Judge Mike H. Madokoro, Department 91, of the Stanley Mosk Courthouse, located at 111 North Hill Street, Los Angeles, California 90012, to present the following emergency application:

Nature of Relief Sought

Defendant seeks reconsideration of the Court's October 15, 2025 Minute Order, which denied the prior Ex Parte Application solely on procedural grounds. This reconsideration request is properly brought under CCP §1008, Rule 3.1204, and CCP §473(d), on the basis that:

1. The previous denial was not on the merits but for lack of typed format, missing declaration, and absence of proof of notice.
2. The current filing corrects those deficiencies, including:
    - A typed, line-numbered pleading compliant with Rule 2.109;

EXHIBIT 4

From: Derrick LaMont Beverly <dernierc rilamont@yahoo.com>
Sent: Wednesday, October 15, 2025 6:34:11 PM
To: Christopher Godinez <cgodinez@loacs.com>
Cc: Ada Cordero-Sacks <ada@loacs.com>
Subject: Supplemental Service – Exhibit A (Minute Order) – Fox Normandie Apts., LP v. Beverly (22STUD06657)

Beverly

Beverly

dernierc rilamont@yahoo.com

EXHIBIT 5

From: Derrick LaMont Beverly <dernierrilamont@yahoo.com>
Sent: Wednesday, October 15, 2025 6:34:11 PM
To: Christopher Godinez <cgodinez@loacs.com>
Cc: Ada Cordero-Sacks <ada@loacs.com>
Subject: Supplemental Service – Exhibit A (Minute Order) – Fox Normandie Apts., LP v. Beverly (22STUD06657)

Beverly

Beverly

EXHIBIT 6

Service of Motion to Set Aside Default and Default Judgment – Fox Normandie Apartments, LP v. Beverly, Case No. 22STUD06657

DB

Derrick LaMont Beverly<derniercrilamont@yahoo.com>

To: eservice

Reply | Reply all | Forward

Tue 3/24/2026 9:44 PM

You forwarded this message on Wed 3/25/2026 9:34 AM

View conversation

MOTION_AND_NOTICE_OF_...
708 KB

Counsel,

Please take notice that I have served the following filing documents in the above-referenced matter:

MOTION AND NOTICE OF MOTION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT; MEMORANDUM OF POINTS AND AUTHORITIES; DECLARATION OF DERRICK LAMONT BEVERLY; EXHIBIT INDEX; [PROPOSED] ORDER; NOTICE OF NOTICE; AND PROOF OF SERVICE.

(Please find the accompanied PDF document attached this email)

The motion is set for hearing on April 22, 2026, at 8:30 a.m. in Department 91, Stanley Mosk Courthouse.

Please regard this email as confirmation of service of the above-referenced filing packet. The filed copies are attached for your review and records.

Thank you.

Sincerely,

Derrick LaMont Beverly
Respondent, in Propria Persona Sui Juris

1929 Wilcox Avenue, Apt. #1

Los Angeles, California 90068

(213) 915-9450
derniercrilamont@yahoo.com
dlb@dlbllclaw.com

Sent from Yahoo Mail for iPhone

LAW OFFICES OF ADA R. CORDERO-SACKS
8399 Topanga Canyon Blvd., Suite 304
West Hills, CA 91304
(818) 343-0100; Facsimile: (818) 343-0070

PROOF OF SERVICE

COUNTY OF LOS ANGELES, STATE OF CALIFORNIA:

I am employed in the County of Los Angeles, State of California. I am over the age of 18 and not a party to the within action. My business address is: 8399 Topanga Canyon Blvd., Suite 304, West Hills, CA 91304

On **April 14, 2026,** I served the foregoing document described **DECLARATION OF TRACEY MERRELL IN SUPPORT OF OPPOSITION TO SET ASIDE DEFAULT AND DEFAULT JUDGMENT** in this action by placing [X] the original [ ] a true and correct copy therefore enclosed in a sealed envelope with postage thereon fully prepaid, in the United States mail at Los Angeles, California addressed as follows:

DERRICK L. BEVERLY
1738 N. Las Palmas Avenue
Los Angeles, CA 90028
Email: dernierecrilamont@yahoo.com;

[X] [BY MAIL] Pursuant to CCP § 1013(a) and under firm practice said envelope would be deposited with the U.S. Postal Service on the same day with postage thereof fully prepaid at West Hills, California in the ordinary course of business. I am readily familiar with the Law Offices of Ada R. Cordero-Sacks ordinary business practice of collection and processing correspondence for mailing. I followed this business practice, and I placed the envelope for collection and mailing on the date identified above. I am aware that on a motion of the party served, service is presumed invalid if postage cancellation date or postage date is more than one day after date of deposit for mailing in affidavit. I deposited such envelope in the U.S. mail at West Hills, California.

[ ] United States Postal Service Next Day Shipping

[ ] [BY PERSONAL SERVICE] I caused our process server to deliver such envelope by hand to the address above.

[X] [ELECTRONIC SERVICE] I caused said document(s) to be transmitted to the email address(es) of the addressee(s) designated.

[X] [STATE] I declare under penalty of perjury under the laws of the State of California that the above is true and correct

DATED: April 14, 2026

Karina Medina